

Tamil Nadu Legislator's (Medical Attendance and Treatment to Former Members) Rules, 1982

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Tamil Nadu Legislator's (Medical Attendance and Treatment to Former Members) Rules, 1982

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Tamil Nadu Legislator's (Medical Attendance and Treatment to Former Members) Rules, 1982

Rule

TAMIL-NADU-LEGISLATOR-S-MEDICAL-ATTENDANCE-AND-TREATMENT-TO-FORMER-MEMBERS-RULES-1982
of 1982

Published on 25 January 1982

Commenced on 25 January 1982

[This is the version of this document from 25 January 1982.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Legislator's (Medical Attendance and Treatment to Former Members) Rules, 1982

Published vide Notification No. G.O. Ms.No. 122, Public (Establishment-1), Dated 25th January 1982

1.

Short title and commencement.

(1)

These rules may be called the Tamil Nadu Legislator's (Medical Attendance and Treatment to Former Members) Rules, 1982.

(2)

These rules shall be deemed to have come into force on the 13th March 1980.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951);

(b)

"Assembly" means the Tamil Nadu Legislative Assembly;

(c)

"Authorised Officer" means the Officer authorised by the Secretary to countersign the medical reimbursement claims;

(d)

"Council" means the Tamil Nadu Legislative Council, which was abolished by the Tamil Nadu Legislative Council (Abolition) Act, 1986 (Central Act 40 of 1986);

(dd)

["Family" means, -

[Inserted by G.O. Ms. No. 1109, dated 26.11.2010.]

(a)

In the case of male member of the Legislative Assembly or the Council -

(i)

parents;

(ii)

wife;

(iii)

legitimate Children (including an adopted son and daughter); and

(iv)

step children residing with and wholly dependent on him;

(b)

in the case of female member of the Legislative Assembly or the Council, -

(i)

parents;

(ii)

husband;

(iii)

children (including an adopted son and daughter) residing with and wholly dependent on her;

Explanation. - For the purpose of this clause the word children means children who have not completed 25 years and unmarried and not employed in Government, private or self employment.]

(e)

"Government" means the Government of Tamil Nadu;

(f)

[Omitted]

[Vide G.O. Ms.No. 487, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

.

(g)

"Secretary" means the Secretary to the Assembly; and

(h)

"State" means the State of Tamil Nadu.

3.

Eligibility and concessions admissible.

- Every person, who had been a Member of the Assembly or the Council or both, but had ceased to be such Member at any time, shall be entitled to the medical concessions [as are admissible to the Members of the Tamil Nadu Legislative

Assembly]

[Vide G.O. Ms.No. 1406, Public (Establishment-I and Legislature), dated 14th August 2007 (with effect from 1st April, 2007).]

under clauses (i) to (iii) of rule 4 of the Tamil Nadu Legislative Assembly (Medical Attendance and Treatment) Rules, 1964:

[Provided that the former Members referred to in the rule shall be entitled for a medical allowance of [Rs. 12,000 (rupees twelve thousand only)]

[Vide G.O. Ms.No. 1406, Public (Establishment-I and Legislature), dated the 14th August 2007 (with effect from 1st April 2007).]

for every financial year:]

Provided further that the medical concessions conferred under this rule shall not be extended to the members of the family of the person referred to in this rule.

[Provided further that the medical concessions conferred under this rule shall be extended to the members of the family of the person referred to in this rule:]

[Inserted by G.O. Ms.No. 1109, dated 26.11.2010.]

Provided also that in the event of death of the member of the Legislative Assembly or the Council or former member of Legislative Assembly or the Council, the medical concession conferred under this rule shall also be extended to the members of the family of such member or the former member.

3A.

[Death of former Member.

[Vide G.O. Ms.No. 7, Public (Establishment-I and Legislature), dated the 3rd January 2005 (with effect from 1st April 2004).]

- In the event of the death of the former Member after the commencement of the financial year, the proportionate amount of medical allowance for the period the former Member lives in the financial year due till the date of his death shall be paid to his legal heirs.]

4.

[Claim and payment of medical allowance.]

[Vide G.O. Ms.No. 487, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

- Medical allowance shall be claimed by the Authorised Officer in Forms A and B appended to these rules in the month of March of every financial year, without any claim being preferred by the former Members and credited to the accounts of the former Members in the Bank by means of a Crossed Account Payee cheque. The Bank shall furnish a receipt for the amount received.

5.

[Particulars to be furnished by the persons entitled to medical concessions.

[Substituted by G.O. Ms.No. 1109, dated 26.11.2010.]

- The persons referred to in rule 3 shall be required to furnish to the Secretary three copies of his passport size photograph and three specimen signatures of himself and his family members duly attested by an officer having a seal of office.]

6.

Issue of Identity Card.

(1)

Every person referred to in rule 3 shall, for the purpose of availing himself [and his family members after his demise]

[Inserted by G.O. Ms.No. 1109, dated 26.11.2010.]

of the medical concessions, be provided with an "Identity Card" in Form C appended to these rules.

(2)

If, at any time, the person is not entitled to the concessions referred to in rule 3, the Identity Card already issued shall become invalid and it shall be returned forthwith to the Secretary, in all other cases, the Identity Card shall be renewed every five years.

(3)

If the Identity Card is lost, a fresh Identity Card shall be issued on submitting an application enclosed with a crossed Indian Postal Order for a value of Rs. 5 (rupees five only) drawn in favour of the Secretary. Such crossed Indian Postal

Order shall not be dated earlier than 15 days from the date of application.

6A.

[

[Vide G.O. Ms.No. 419, Public (Establishment-I and Legislature), dated the 24th March 2000 (with effect from 1st April 1999).]

[***]].

7.

Special provisions.

- The decision of the Secretary on all matters not covered by these rules shall be final.

Appendix

[Form A]

[Vide G.O. Ms.No. 419, Public (Establishment-I and Legislature Wing) Department, dated the 24th March 2000 (with effect from 1st April 1999).]

(See rule 4)

Former Members Medical Allowance

Head of Account:

Year Voucher No.

Number of former Members (1)

Name of the Bank amount (2)

(vide Schedule attached)

Counter-signed for Rs.....(Rupees.....)

Authorised Officer, Legislative Assembly Secretariat.

Certified that the amount has not been drawn previously.

Passed for payment of Rs..... (Rupees.....)

Paid cheque No:

Dated:

Authorised Officer, Legislative Assembly Secretariat.

[Form B]

[Substituted for the expression 'draws wages exceeding five hundred rupees per mensem' by Tamil Nadu Payment of Subsistence Allowance (Amendment) Act, 1999 (Tamil Nadu Act 35 of 1999).]

(See rule 4)

Former Members Medical Allowance for the Year of

Sl. No.

Legislators pension payment order

Name of the former member

Account number

Name of the bank and address

Amount

Authorised Officer, Legislative Assembly Secretariat.

(for the-use of Bank only)

Certified that the amount has been credited to the account of..... the former members as detailed in the Schedule.

Place:

Date:

Signature.

Designation.

[Form C]

[Substituted by G.O. Ms.No. 1109, dated 26.11.2010.]

(See rule 6)

Identity Card For Availing Medical Concession Under The Tamil Nadu Legislators (Medical Attendance And Treatment To Former Members) Rules, 1982

(Valid for five years from the date of issue/renewal)

Proforma

1.

Name of former Member/family of deceased former Member of Legislature

:

(Constituency represented and the district may also be indicated)

:

2.

Period of membership in the Assembly or the Council

:

3.

Address

:

4.

Married/Single

:

5.

Name of the spouse

:

6.

Specimen Signature of former member/family member of the deceased former member/deceased member

:

(1)

(2)

(3)

Particulars of Family Members

Name

Age

Identification marks.

1.

Wife/Husband

2.

Dependent Sons

(i)

(ii)

(iii)

(iv)

3.

Dependent Daughters

(i)

(ii)

(iii)

(iv)

4.

Dependent Parents:

(i) Father

(ii) Mother

Declaration

I hereby declare that the particulars furnished above are true and correct to the best of my knowledge and belief.

Station:

Date :

Signature of the former Member of the Legislative Assembly/Council/ Family member of the deceased former member.
Certificate

1. (a) Certified that Thiru/Tmt/Selvi..... is a former Member of the Legislative Assembly/Council*, who had representedConstituency in..... District.

(b)

Certified that Thiru/Tmt./Selvi.....is a family member of Thiru / Tmt. / Selvi.....deceased member / former Member* of the Legislative Assembly/Council, who had represented.....Constituency in.....District.

2. *The former member, family of former member, family of deceased former member, family of deceased member is entitled to accommodation in 'A' Class Wards or 'B' Class Wards whichever is available at the time of admission in the Hospitals (maintained by the State Government) free of charge, free medical treatment, free supply of diet during his/her inpatient treatment.

3. The former members alone are eligible for medical allowance of [Rs. 12,000/- (Rupees Twelve thousand only)]
[Substituted for 'Rs. 10,000/-(Rupees Ten thousand only)' by G.O. Ms. No. 787, dated 23.7.2013, w.r.e.f. 1.4.2013.]
for every financial year.

Signature of Issuing Authority

Date Stamp and Seal of the issuing AuthorityOfficer:Designation:

*(Strike out whichever not applicable)

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